

How to Document Everything and Win Your Case

A Complete Guide for Men Facing Domestic Violence Accusations,
Restraining Orders, and Custody Battles

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This guide provides general information only and is not a substitute for legal advice.
Always consult a licensed attorney in your jurisdiction.

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Introduction

If you are reading this guide, you are probably in one of the most stressful and frightening situations of your life. You may be facing a domestic violence accusation, a restraining order, a custody battle, or all three at once. You may feel like the system is stacked against you — and in some ways, it is.

But men do win these cases every day. The difference between winning and losing almost always comes down to one thing: documentation. Men who document everything, stay calm, and work strategically with the right attorney consistently outperform those who react emotionally or assume the truth will speak for itself.

This guide was written by someone who has been through it. It is direct, practical, and designed to be read quickly when you are overwhelmed. Every chapter gives you specific, actionable steps — not vague advice.

What this guide covers:

- Exactly what to do in the first 48 hours
- How to build an evidence file that attorneys love
- The legal process explained in plain English
- How to pick the right attorney — and red flags to avoid
- Court day preparation and demeanor
- Protecting your parental rights
- The 12 biggest mistakes men make that cost them their cases
- How to rebuild after the case is over

One final note before we begin: this guide is not a substitute for a licensed attorney. Use it to understand your situation, ask better questions, and be a more prepared client — not to represent yourself.

Chapter 1

The First 48 Hours: What to Do Immediately

The first 48 hours after an accusation or restraining order are critical. What you do — and don't do — in this window can determine the outcome of your entire case.

Step 1: Do Not Contact Her

This is the single most important rule. Do not call, text, email, or message her through any third party, including your children. Even a message saying 'I love you' or 'I'm sorry this is happening' can be used against you as evidence of harassment or violation of a restraining order.

⚠ Even well-meaning contact can result in criminal charges for violating a restraining order. One text message has sent men to jail. Do not do it — not even through your kids.

Step 2: Write Down Everything — Right Now

Memory fades fast under stress. Within the next hour, sit down and write a detailed account of everything that happened. Include:

- The exact date and time of every incident
- Exactly what was said — word for word if possible
- Who was present (full names, contact info)
- What physical evidence exists (texts, photos, videos, voicemails)
- Any prior incidents that are relevant
- Your whereabouts at the time of any alleged incident

Write this by hand or in a private document. Do not store it anywhere she has access to.

Step 3: Preserve Digital Evidence Immediately

Digital evidence disappears fast. Right now, before you do anything else:

- Screenshot every text message conversation — scroll all the way up
- Screenshot all social media messages (Facebook Messenger, Instagram DMs, Snapchat if possible)
- Export your email threads with her

- Back up any voicemails to a recording app
- Save any photos or videos of injuries, damage to property, or confrontations
- Email all of this to yourself at a private email account she doesn't know about

Step 4: Secure Your Digital Life

- Change all passwords immediately — email, bank, social media, cloud storage
- Create a new email account she doesn't know about for case communications
- Check if she has access to your phone's location sharing — turn it off
- Check shared cloud accounts (iCloud, Google Photos) — she may still see your photos
- Do not post anything on social media about the situation

Step 5: Call an Attorney Today

Not tomorrow. Today. Even a free 15-minute consultation will tell you what your immediate rights are. If you cannot afford a private attorney, contact your local legal aid office or the National Coalition for Men (ncfm.org) for referrals.

✓ Many attorneys offer free initial consultations. Call 3-5 attorneys today to find the best fit. Ask specifically: 'Have you handled false accusation cases for men?' Their answer will tell you a lot.

Chapter 2

Building Your Evidence File

Your evidence file is the foundation of your defense. Think of it like building a house — every piece of evidence is a brick. The more bricks you have, the stronger your case.

The 5 Categories of Evidence

Category	What to Collect	Priority
Digital Messages	Texts, emails, DMs, voicemails. Screenshot with timestamps visible.	CRITICAL
Photos & Video	Injuries, property damage, confrontations. Dashcam, home security footage.	CRITICAL
Witness Statements	Friends, family, neighbors, coworkers. Anyone who observed relevant events.	HIGH
Financial Records	Bank statements showing her spending. Evidence of financial control or abuse.	MEDIUM
Official Records	Police reports (yours AND hers). Prior protective orders, 911 call logs.	HIGH

How to Organize Your Evidence File

Create a folder on your computer (or a USB drive stored somewhere safe) with these subfolders:

- 01_Timeline — your written account of every incident in chronological order
- 02_Text_Messages — screenshots organized by date
- 03_Emails — exported email threads
- 04_Photos_Video — labeled with date and description
- 05_Witness_Info — names, contact info, what each person witnessed
- 06_Financial — bank statements, receipts, financial records
- 07_Official_Records — police reports, court filings, orders

- 08_Attorney_Communications — every email and note from your attorney

The Incident Log

After today, keep a running incident log for every relevant event. For each entry, record:

- Date and exact time
- Location
- What happened — exact words spoken if possible
- Witnesses present
- Evidence created (did you screenshot something? take a photo?)
- Your emotional state and any injuries
- Whether police were involved and any report numbers

✓ Use the Evidence Log feature in the Men's DV Resource Hub app at mensdvhelp.pplx.app — it stores your entries securely on your device and lets you download a formatted report to share with your attorney.

Recording Conversations — Know Your State's Law

Recording laws vary by state. In a one-party consent state, you can legally record any conversation you are part of without telling the other person. In a two-party consent state, both parties must consent to being recorded.

One-Party Consent States (can record without telling her)	Two-Party Consent States (must inform before recording)
Alabama, Alaska, Arizona, Arkansas, Colorado, Georgia, Hawaii, Idaho, Indiana, Iowa, Kansas, Kentucky, Louisiana, Maine, Minnesota, Mississippi, Missouri, Montana, Nebraska, New Jersey, New Mexico, New York, North Carolina, North Dakota, Ohio, Oklahoma, Oregon, Rhode Island, South Carolina, South Dakota, Tennessee, Texas, Utah, Virginia, West Virginia, Wisconsin, Wyoming	California, Connecticut, Delaware, Florida, Illinois, Maryland, Massachusetts, Michigan, Nevada, New Hampshire, Pennsylvania, Washington

⚠ Always verify your state's current law with an attorney before recording. Laws change.

Chapter 3

Understanding the Legal System

The Two Tracks: Criminal vs. Civil

Domestic violence cases usually involve two separate legal tracks that run at the same time. Understanding both is essential:

Criminal Track

- Police file charges after an incident or complaint
- The state prosecutes — not her. Even if she recants, the DA can proceed
- Penalties: fines, probation, jail time, criminal record
- Standard of proof: beyond a reasonable doubt (hardest standard)
- You have the right to a public defender if you cannot afford an attorney

Civil/Family Track

- Restraining orders (Temporary Protective Orders and Permanent Protective Orders)
- Divorce proceedings
- Child custody and visitation
- Division of assets
- Standard of proof: preponderance of evidence (just 51% likely) — much easier to meet
- You are NOT entitled to a free attorney in civil cases — you must hire one

⚠ The civil track is often more dangerous than the criminal track for men. A restraining order can be issued with minimal evidence and can cost you your home, your children, and your job — all before you have a chance to tell your side of the story.

Temporary Restraining Orders (TROs) — What You Need to Know

A Temporary Restraining Order (TRO) can be granted without you present — you have no opportunity to defend yourself at this stage. The judge only hears her side. This is by design: the law prioritizes protecting alleged victims first and resolving disputes second.

What a TRO typically does:

- Requires you to leave the shared home immediately (even if you own it)
- Prohibits contact with her and sometimes the children

- May prohibit you from going near her workplace or the children's school
- Gives her temporary custody of children and control of the home
- Can show up on background checks

You WILL have a hearing, typically within 10-21 days, where you can present your side. This hearing is your most important early opportunity. Do not miss it. Have an attorney.

The Hearing: Your Shot to Fight Back

- Arrive early, dress professionally (business casual at minimum)
- Bring all documentary evidence: printed text screenshots, photos, records
- Bring your witness list — the judge may allow brief testimony
- Your attorney will cross-examine her testimony
- Stay calm no matter what she says — emotional outbursts hurt you
- The goal: either dismiss the TRO entirely or modify it to allow custody time

Chapter 4

Choosing and Working With an Attorney

Your attorney is your most important asset. A great attorney who believes in your case and has experience with false accusations can make the difference between losing everything and walking away with your life intact.

Questions to Ask Before Hiring

- How many DV defense cases have you handled for men accused of domestic violence?
- What percentage of those cases did your client win or get charges reduced?
- Have you handled cases involving false allegations specifically?
- Do you have experience with restraining order hearings?
- Who in your office will actually work on my case day-to-day?
- What is your communication policy — how fast do you respond to calls/emails?
- What is your fee structure? Retainer amount? Hourly rate?
- What is your honest assessment of my case based on what I've told you?

Red Flags — Walk Away If You See These

- ▲ They guarantee a specific outcome — no ethical attorney does this
- ▲ They seem unfamiliar with DV defense or men's rights cases
- ▲ They pressure you to settle immediately without reviewing your evidence
- ▲ They are dismissive of your documentation or don't ask to see it
- ▲ They cannot tell you who will handle your case day-to-day
- ▲ They have no online reviews or bar complaints against them

How to Be a Good Client

Your attorney can only work with what you give them. Be the best client possible:

- Give them your complete, organized evidence file in the first meeting
- Never lie to your attorney — they need the truth to defend you
- Respond to their calls and emails within 24 hours
- Do not take unilateral legal actions without telling them first

- Pay your bills on time — an unpaid attorney is a distracted attorney
- Trust their strategy — do not try to run your own case
- Keep a log of every conversation you have with your attorney and what was discussed

Chapter 5

Court Day Preparation

The Night Before

- Lay out your clothes — conservative business attire. No jeans, no sneakers, no logo tees
- Print 3 copies of all your key documents (one for you, one for attorney, one for the judge)
- Charge your phone — but plan to keep it on silent and put away in court
- Get to bed early — you need to be sharp
- Do not drink alcohol or take anything that could affect your alertness
- Review your attorney's prepared questions and your expected testimony

Court Day — How to Present Yourself

Judges and juries read people. Your demeanor is evidence. Here is how to be read correctly:

- Arrive 30 minutes early — late arrivals signal disrespect and panic
- Address the judge as 'Your Honor' every time you speak to them
- Speak slowly, clearly, and calmly — even when it is hard
- Do not react visibly to anything she says on the stand — stay neutral
- Answer only the question asked — do not volunteer extra information
- If you do not understand a question, say 'Could you rephrase that?'
- If you need a moment to think, take it — silence is fine
- Make eye contact with the judge when answering — not the opposing attorney

✓ The single most powerful thing you can do in court is appear calm, credible, and prepared. Judges see emotional men every day. The man who stays composed, answers directly, and has organized evidence stands out immediately.

If She Lies on the Stand

This is when men most often lose control — and lose their cases. If she says something false, do not react. Do not shake your head, roll your eyes, or whisper to your attorney loudly. Write a note to your attorney. They will address it through cross-examination and

your rebuttal testimony. Trust the process.

Chapter 6

Protecting Your Relationship With Your Children

For many men, this is the most painful part of the situation. A restraining order often comes with temporary loss of contact with your children. Here is how to fight for your parental rights and protect your bond with them.

What Not to Do

- ⚠ Do not badmouth their mother to the children — ever. Courts watch for this.
- ⚠ Do not use the children as messengers to communicate with her
- ⚠ Do not violate custody orders even once — one violation can cost you everything
- ⚠ Do not post about the custody battle on social media
- ⚠ Do not bring a new partner around the children during the case

What to Do

- Document every missed visitation — time, date, reason given
- Communicate about the children only through official channels (app like TalkingParents or OurFamilyWizard — these are court-admissible)
- Keep a log of everything related to the children — school events, medical appointments, activities you attended
- Stay involved in school — attend events, email teachers, stay on the emergency contact list
- Maintain a home that is appropriate for the children — a bedroom, food, stability
- Take a parenting class proactively — courts view this very favorably
- Request a Guardian ad Litem (GAL) — an independent advocate for the children appointed by the court

Parental Alienation

If she is actively trying to turn the children against you, document every instance. Parental alienation is recognized by courts as harmful to children and can actually help your custody case. Signs include:

- Children refusing visits after previously having no issues

- Children repeating adult legal language they would not normally know
- Being excluded from school or medical communications
- Children being coached on what to say to the court or investigators

Chapter 7

12 Mistakes That Lose Cases

These are the most common and most costly mistakes men make. Read this chapter carefully and tape it somewhere you will see it every day.

1. Contacting her after a restraining order

Even one message can result in criminal charges. Zero contact means zero contact.

2. Assuming the truth will come out on its own

Courts decide based on evidence presented, not truth that was never documented. If you do not present it, it does not exist to the judge.

3. Posting about the case on social media

Everything you post is discoverable evidence. Anger, frustration, and venting on Facebook have cost men their cases and their freedom.

4. Representing yourself

Pro se defendants in DV cases lose at a dramatically higher rate. The other side has an attorney. You need one too.

5. Waiting to get an attorney

Every day without legal counsel is a day evidence could be lost and deadlines could be missed. Call today.

6. Hiding assets or lying to the court

Courts take perjury and contempt very seriously. Getting caught lying once destroys your credibility on everything — including the truth.

7. Losing your temper in court or in front of her

She may be provoking you deliberately. Any outburst is documented and used. Stay calm in every environment — courthouse, parking lot, school pickup.

8. Violating any part of the restraining order

'It was just a quick text' has put men in jail. The order means exactly what it says. Follow it precisely until a judge modifies it.

9. Failing to show up to hearings

Missing a hearing — even a minor one — can result in a default ruling against you. Every hearing is mandatory unless your attorney tells you otherwise.

10. Talking to police without an attorney present

You have the right to remain silent. Use it. Anything you say — even something innocent — can be twisted. Say: 'I would like to speak with my attorney first.'

11. Bad-mouthing her to the children

Courts view this as emotional abuse of the children and will hold it against you in custody proceedings. Keep the children out of adult conflicts completely.

12. Giving up

Many men in your situation feel hopeless and stop fighting. Do not. Men win these cases every day. Document, stay calm, and trust the process.

Chapter 8

Your Recovery Plan

Win or lose — and you can win — you will need to rebuild. This chapter is about taking care of yourself through this process and coming out the other side stronger.

Your Mental Health

Men in DV situations face enormous stigma. Society tells men they should be able to handle everything alone. That is wrong, and it costs lives. Studies show men are significantly more likely to not seek help during crises — and significantly more likely to suffer severe consequences as a result.

- Get into therapy now — not after the case, now. Many therapists specialize in men's issues
- Tell at least one trusted person what is happening — isolation makes everything worse
- Exercise daily — even a 20-minute walk reduces cortisol and improves decision-making
- Limit alcohol — it impairs judgment, damages credibility, and worsens depression
- Join a support group for men in similar situations (ncfm.org, [reddit r/mensrights](https://www.reddit.com/r/mensrights/) for resources)

Your Financial Stability

- Open individual bank accounts if you have not already
- Monitor your credit — divorce and legal battles often involve financial damage
- Keep paying your bills even if she is not contributing — missed payments hurt your case
- Track all legal expenses — some may be recoverable if you prevail
- Keep your job — stable employment is critical evidence of fitness as a parent and partner

After the Case

When the case concludes — whether in your favor or not — there is life afterward. Men who go through this often come out with a clarity and strength they did not have before. You will know your rights. You will know how to protect yourself. You will have built habits of documentation and careful communication that serve you for the rest of your life.

- ✓ If the case concludes in your favor, ask your attorney about expungement — removing the arrest or accusation from your record. Many states allow this and it can significantly protect your career and future.
- ✓ If false allegations were proven, you may have grounds for a defamation or malicious prosecution lawsuit. Ask your attorney.

Quick Reference Checklist

Print this page and check off items as you complete them.

First 48 Hours

- ☐ Stopped all contact with her
- ☐ Wrote detailed account of all incidents
- ☐ Screenshotted all text message conversations
- ☐ Saved all voicemails
- ☐ Changed all passwords
- ☐ Emailed evidence to private account she doesn't know
- ☐ Called an attorney
- ☐ Turned off location sharing on phone

Ongoing Documentation

- ☐ Set up incident log (app or notebook)
- ☐ Created organized evidence folder on secure device
- ☐ Identified and contacted potential witnesses
- ☐ Obtained copies of any police reports
- ☐ Printed and organized all digital evidence

Legal

- ☐ Hired a qualified DV defense attorney
- ☐ Attended all scheduled hearings
- ☐ Followed every term of any restraining order precisely
- ☐ Stayed off social media regarding the case
- ☐ Communicated with children's mother only through official app

Self-Care

- ☐ Started therapy or counseling
- ☐ Told at least one trusted person what is happening

☐ Opened individual bank accounts

☐ Maintained employment

☐ Exercising regularly

[Men's DV Resource Hub — mensdvhhelp.com](#) | App: [mensdvhhelp.pplx.app](#)

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